

COMMITTEE ON EDUCATION
SENATE AMENDMENTS TO H.B. 2379
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-302, Arizona Revised Statutes, is amended to
3 read:

4 15-302. Powers and duties

5 A. The county school superintendent shall:

6 1. Distribute all laws, reports, circulars, instructions and forms
7 that the county school superintendent may receive for the use of school
8 officers.

9 2. Record all official acts.

10 3. Appoint governing board members of school districts to fill all
11 vacancies, but the term of the appointment shall be until the next regular
12 election for governing board members, at which time a successor shall be
13 elected to serve the unexpired portion of the term. ~~A person who is~~
14 ~~subject to registration as a sex offender in this state or in any other~~
15 ~~jurisdiction is ineligible for appointment under this paragraph.~~ Within
16 thirty days after notification of a vacancy, the school district governing
17 board may submit up to three names to the county school superintendent for
18 consideration of an appointment to fill the vacancy. The county school
19 superintendent is not required to appoint a governing board member from
20 the list of names submitted by the governing board. The county school
21 superintendent, if the county school superintendent deems it in the best
22 interest of the community, may call a special election to fill the
23 vacancies. If an election is called, the newly elected member shall serve
24 for the remainder of the unexpired portion of the term. A PERSON IS
25 INELIGIBLE FOR APPOINTMENT UNDER THIS PARAGRAPH IF EITHER OF THE FOLLOWING
26 APPLIES:

27 (a) THE PERSON IS SUBJECT TO REGISTRATION AS A SEX OFFENDER IN THIS
28 STATE OR IN ANY OTHER JURISDICTION.

1 (b) THE PERSON IS INELIGIBLE TO BE A CANDIDATE FOR APPOINTMENT TO
2 THE OFFICE OF SCHOOL DISTRICT GOVERNING BOARD MEMBER PURSUANT TO SECTION
3 15-349, SUBSECTION E.

4 4. Make reports, when directed by the superintendent of public
5 instruction, showing matters relating to schools in the county as may be
6 required on the forms furnished by the superintendent of public
7 instruction.

8 5. Have such powers and perform such duties as otherwise prescribed
9 by law.

10 6. On or before October 1 of each year, report to the
11 superintendent of public instruction the amount of monies received from
12 state school funds, special school district taxes and other sources, the
13 total expenditures for school purposes and the balance on hand to the
14 credit of each school district at the close of the school year.

15 7. Contract with the board of supervisors for the board of
16 supervisors to conduct all regular school district elections.

17 8. Be responsible, in cooperation with the school district
18 governing boards and the board of supervisors, for all special school
19 district elections.

20 9. Maintain teacher and administrator certification records of
21 effective dates and expiration dates of teachers' and administrators'
22 certificates in compliance with guidelines prescribed in the uniform
23 system of financial records for those school districts for which the
24 county school superintendent is the fiscal agent. The county school
25 superintendent shall not draw a warrant in payment of a teacher's,
26 substitute teacher's or administrator's salary unless the teacher,
27 substitute teacher or administrator is legally certified during the fiscal
28 year in which the term for payment is demanded.

29 10. Notify a school district three years before the expiration of a
30 revenue control limit override that the school district's budget must be
31 adjusted in the final two years of the override pursuant to section
32 15-481, subsections P and Q, if the voters do not approve another
33 override.

34 11. In collaboration with the department of education and other
35 state agencies, assist school districts, charter schools, county free
36 library districts, municipal libraries, nonprofit and public libraries,
37 tribal libraries, private schools and tribal schools on using student
38 data, staff development, curriculum alignment and technology to improve
39 student performance.

40 12. Assist schools in meeting yearly adequate progress goals as
41 defined by criteria established by the state board of education and
42 implemented by the department of education.

43 B. At the request of school districts and charter schools, the
44 county school superintendent may provide discretionary programs in
45 addition to the programs prescribed in subsection A of this section.

1 C. The county school superintendent may:

2 1. Provide the services prescribed in subsections A and B of this
3 section in the county or jointly with two or more counties pursuant to
4 title 11, chapter 7, article 3.

5 2. Review the operations and finances, including expenditures, of
6 any school district that is located in the county.

7 D. Each county school superintendent may establish an advisory
8 committee to the office of the county school superintendent.

9 Sec. 2. Title 15, chapter 3, article 3, Arizona Revised Statutes,
10 is amended by adding section 15-349, to read:

11 15-349. Governing board members; training requirements;
12 annual reports; ineligibility; auditor general
13 approval; joint legislative audit committee hearing
14 and approval

15 A. [AT LEAST ONCE IN EVERY TWO-YEAR PERIOD] [NOT LATER THAN THIRTY
16 DAYS AFTER TAKING OFFICE], EACH GOVERNING BOARD MEMBER OF EACH SCHOOL
17 DISTRICT IN THIS STATE [WHO HAS NOT PREVIOUSLY SERVED AS A SCHOOL DISTRICT
18 GOVERNING BOARD MEMBER IN THIS STATE] SHALL COMPLETE A TRAINING PROGRAM
19 THAT INCLUDES A TOTAL OF AT LEAST EIGHT HOURS OF INSTRUCTION ON SCHOOL
20 FINANCE, INCLUDING HOW ALL OF THE FOLLOWING TOPICS RELATE TO SCHOOL
21 FINANCE:

22 1. SCHOOL DISTRICT GOVERNANCE.
23 2. THE FIDUCIARY DUTIES OF SCHOOL DISTRICT GOVERNING BOARD MEMBERS.
24 3. HOW TO DEVELOP, ADOPT AND IMPLEMENT SCHOOL DISTRICT GOVERNING
25 BOARD POLICIES.
26 4. COMMUNITY ENGAGEMENT AND COLLABORATION WITH STAKEHOLDERS.
27 5. STUDENT OUTCOME-FOCUSED SCHOOL DISTRICT GOVERNANCE.
28 6. THE LEGAL AND ETHICAL RESPONSIBILITIES OF SCHOOL DISTRICT
29 GOVERNING BOARD MEMBERS.
30 7. ANY OTHER PROFESSIONAL DEVELOPMENT TOPICS THAT ARE RELEVANT TO
31 SERVICE AS A SCHOOL DISTRICT GOVERNING BOARD MEMBER.

32 B. THE COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY IN WHICH A SCHOOL
33 DISTRICT IS LOCATED OR, IF A SCHOOL DISTRICT IS LOCATED IN MORE THAN ONE
34 COUNTY, THE COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY IN WHICH A
35 GOVERNING BOARD MEMBER RESIDES SHALL PROVIDE A TRAINING PROGRAM THAT IS
36 APPROVED BY THE AUDITOR GENERAL AND THAT MEETS THE REQUIREMENTS PRESCRIBED
37 BY SUBSECTION A OF THIS SECTION FOR THE SCHOOL DISTRICT GOVERNING BOARD
38 MEMBERS. A COUNTY SCHOOL SUPERINTENDENT MAY ENTER INTO AN
39 INTERGOVERNMENTAL AGREEMENT OR CONTRACT WITH ANOTHER COUNTY SCHOOL
40 SUPERINTENDENT TO PROVIDE THE TRAINING PROGRAM THROUGH THE OTHER COUNTY
41 SCHOOL SUPERINTENDENT'S OFFICE.

42 C. ON OR BEFORE OCTOBER 1, 2027 AND [EVERY SECOND] [EACH] YEAR
43 THEREAFTER, EACH SCHOOL DISTRICT GOVERNING BOARD MEMBER [WHO WAS ELECTED
44 OR APPOINTED IN THE IMMEDIATELY PRECEDING YEAR AND WHO HAS NOT PREVIOUSLY
45 SERVED AS A SCHOOL DISTRICT GOVERNING BOARD MEMBER IN THIS STATE] SHALL

1 NOTIFY THE COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY IN WHICH THE SCHOOL
2 DISTRICT IS LOCATED THE DATE ON WHICH THE GOVERNING BOARD MEMBER COMPLETED
3 THE TRAINING. IF THE SCHOOL DISTRICT IS LOCATED IN MORE THAN ONE COUNTY,
4 THE GOVERNING BOARD MEMBER MAY NOTIFY THE COUNTY SCHOOL SUPERINTENDENT OF
5 THE COUNTY IN WHICH THE GOVERNING BOARD MEMBER RESIDES. ON OR BEFORE
6 NOVEMBER 1, 2027 AND ~~[EVERY SECOND]~~ [EACH] YEAR THEREAFTER, EACH COUNTY
7 SCHOOL SUPERINTENDENT SHALL COMPILE THE NOTIFICATIONS RECEIVED PURSUANT TO
8 THIS SUBSECTION AND SUBMIT A REPORT TO THE STATE BOARD OF EDUCATION THAT
9 INDICATES WHETHER EACH [NEWLY ELECTED OR APPOINTED] SCHOOL DISTRICT
10 GOVERNING BOARD MEMBER COMPLETED THE TRAINING. THE STATE BOARD OF
11 EDUCATION SHALL COMPILE THE REPORTS RECEIVED PURSUANT TO THIS SUBSECTION
12 AND, ON OR BEFORE DECEMBER 1, 2027 AND ~~[EVERY SECOND]~~ [EACH] YEAR
13 THEREAFTER, SHALL SUBMIT A REPORT TO THE GOVERNOR, THE PRESIDENT OF THE
14 SENATE, THE SPEAKER OF THE HOUSE OF REPRESENTATIVES, THE OFFICE OF THE
15 AUDITOR GENERAL AND THE SUPERINTENDENT OF PUBLIC INSTRUCTION THAT
16 INDICATES WHETHER EACH [NEWLY ELECTED OR APPOINTED] SCHOOL DISTRICT
17 GOVERNING BOARD MEMBER COMPLETED THE TRAINING.

18 D. THE DEPARTMENT OF EDUCATION SHALL PROVIDE A TRAINING PROGRAM
19 THAT IS APPROVED BY THE AUDITOR GENERAL AND THAT MEETS THE REQUIREMENTS
20 PRESCRIBED BY SUBSECTION A OF THIS SECTION FOR EACH SCHOOL DISTRICT
21 GOVERNING BOARD MEMBER WHO [IS REQUIRED TO COMPLETE THE TRAINING
22 PRESCRIBED BY SUBSECTION A OF THIS SECTION AND WHO] HAS NOT COMPLETED A
23 TRAINING PROGRAM THAT IS PROVIDED BY A COUNTY SCHOOL SUPERINTENDENT
24 PURSUANT TO SUBSECTION B OF THIS SECTION ~~[DURING THE CURRENT TWO-YEAR~~
25 ~~PERIOD]~~. THE DEPARTMENT MAY CHARGE EACH SCHOOL DISTRICT FOR THE COST OF
26 PROVIDING THE TRAINING PROGRAM TO THE SCHOOL DISTRICT'S GOVERNING BOARD
27 MEMBERS PURSUANT TO THIS SUBSECTION. EACH SCHOOL DISTRICT SHALL PAY FOR
28 ANY COSTS INCURRED BY THE DEPARTMENT TO PROVIDE THE TRAINING TO THE SCHOOL
29 DISTRICT'S GOVERNING BOARD MEMBERS.

30 E. A GOVERNING BOARD MEMBER WHO FAILS TO ~~[COMPLETE THE TRAINING~~
31 ~~REQUIRED]~~ [COMPLY WITH THE REQUIREMENTS PRESCRIBED] BY [SUBSECTION]
32 [SUBSECTIONS] A [AND C] OF THIS SECTION IS INELIGIBLE TO BE A CANDIDATE
33 FOR NOMINATION, ELECTION OR APPOINTMENT TO THE OFFICE OF GOVERNING BOARD
34 MEMBER IN ANY SCHOOL DISTRICT IN THIS STATE IF THE SCHOOL DISTRICT
35 GOVERNING BOARD MEMBER BOTH:

36 1. WAS NOT APPOINTED TO THE OFFICE OF GOVERNING BOARD MEMBER DURING
37 THE CURRENT TERM.

38 2. IS A MEMBER OF THE SCHOOL DISTRICT GOVERNING BOARD OF A SCHOOL
39 DISTRICT THAT IS IDENTIFIED BY THE AUDITOR GENERAL AS ONE OF THE HIGHEST
40 RISK SCHOOL DISTRICTS IN THIS STATE.

41 F. THE DEPARTMENT OF EDUCATION AND EACH COUNTY SCHOOL
42 SUPERINTENDENT WHO PROVIDES A TRAINING PROGRAM PURSUANT TO SUBSECTION B OF
43 THIS SECTION SHALL SUBMIT THE TRAINING PROGRAM TO THE AUDITOR GENERAL, IN
44 A FORM AND MANNER PRESCRIBED BY THE AUDITOR GENERAL, FOR APPROVAL BEFORE
45 PROVIDING THE TRAINING PROGRAM TO ANY GOVERNING BOARD MEMBER. IF THE

1 AUDITOR GENERAL DISAPPROVES A TRAINING PROGRAM SUBMITTED PURSUANT TO THIS
2 SUBSECTION, THE DEPARTMENT MAY SUBMIT THE TRAINING PROGRAM TO THE JOINT
3 LEGISLATIVE AUDIT COMMITTEE FOR REVIEW AND APPROVAL. THE JOINT LEGISLATIVE
4 AUDIT COMMITTEE MUST HEAR AND APPROVE OR DISAPPROVE THE TRAINING PROGRAM
5 AT THE FIRST REGULAR MEETING AFTER THE PROGRAM IS SUBMITTED PURSUANT TO
6 THIS SUBSECTION. IF THE JOINT LEGISLATIVE AUDIT COMMITTEE APPROVES THE
7 TRAINING PROGRAM BY A MAJORITY VOTE, THE DEPARTMENT MAY PROVIDE THE
8 TRAINING PROGRAM TO ANY GOVERNING BOARD MEMBER WITHOUT APPROVAL FROM THE
9 AUDITOR GENERAL.

10 Sec. 3. Section 15-421, Arizona Revised Statutes, is amended to
11 read:

12 15-421. Governing boards; members; qualifications;
13 prohibitions; candidate statements; definitions

14 A. The governing body of a school district shall be a governing
15 board. There shall be three governing board members, except as otherwise
16 provided by this section and section 15-425, subsection A.

17 B. The governing body of a high school district shall be a
18 governing board composed of:

19 1. In a single district, the governing board members of the common
20 school district.

21 2. In a union high school district, five members.

22 C. A person is eligible for election to the office of governing
23 board member if all of the following apply:

24 1. The person is a registered voter of this state.

25 2. The person has been a resident of the school district for at
26 least one year immediately preceding the day of election.

27 3. The person is not subject to registration as a sex offender in
28 this state or in any other jurisdiction.

29 4. THE PERSON IS NOT INELIGIBLE TO BE A CANDIDATE FOR NOMINATION OR
30 ELECTION TO THE OFFICE OF GOVERNING BOARD MEMBER PURSUANT TO SECTION
31 15-349, SUBSECTION E.

32 D. An employee of a school district, including a person who
33 directly provides certified or classified services to the school district
34 as an employee of a third-party contractor, or the spouse of such an
35 employee may not hold membership on the governing board of a school
36 district by which the employee is employed.

37 E. Notwithstanding subsection D of this section and title 38,
38 chapter 3, article 8, a small school district may employ, including
39 employment through a third-party contractor that provides services to the
40 small school district, a substitute teacher who is related to a member of
41 the governing board as immediate family and who has had the same household
42 of residence within the preceding four years. If a small school district
43 employs a substitute teacher pursuant to this subsection, the member of
44 the governing board who is related to the substitute teacher shall be
45 recused from voting on any matter relating to substitute teachers.

1 F. A school district may employ, including employment through a
2 third-party contractor that provides services to the school district, a
3 person who served as a member of the school district's governing board
4 during the preceding two years only in a position in which the person will
5 provide services directly to students, including as a certificated
6 teacher, a substitute teacher and an employee or contractor who provides
7 transportation, instructional support or student support services. A
8 school district may increase the time period prescribed in this subsection
9 to be more than two years.

10 G. A member of one governing board is ineligible to be a candidate
11 for nomination or election to or serve simultaneously as a member of any
12 other governing board, except that a member of a governing board may be a
13 candidate for nomination or election for any other governing board if the
14 member is serving in the last year of a term of office. A member of a
15 governing board shall resign the member's seat on the governing board
16 before becoming a candidate for nomination or election to the governing
17 board of any other school district, unless the member of the governing
18 board is serving in the last year of a term of office.

19 H. Notwithstanding section 15-511, each county school
20 superintendent shall publish on the superintendent's website the statement
21 of each certified candidate for membership on a school district governing
22 board located in the county. The county school superintendent shall list
23 each school district on the superintendent's website from which a link
24 shall be established to the candidate's name, which shall link to the
25 candidate's statement and photograph. The candidate shall submit the
26 statement to the person at the county school superintendent's office
27 assigned to manage candidate statements, after notice of certification
28 from the county school superintendent's office but not later than
29 twenty-one days before the date that general election early ballots are
30 allowed to be mailed. The person shall post each candidate's statement on
31 the county school superintendent's website not later than fourteen days
32 before the date that general election early ballots are allowed to be
33 mailed. If a candidate does not submit a statement, the county school
34 superintendent's website shall state "no response submitted" for the
35 candidate. The candidate statements shall be posted on the website
36 alphabetically by each school district and by candidate. The candidate
37 statement shall be typewritten or electronically submitted. The county
38 school superintendent shall post the statements verbatim as they are
39 received unless a candidate requests in writing that typographical errors
40 be corrected. The candidate statement shall contain the following items
41 in the same size and format for each candidate:

- 42 1. A recent photograph of the candidate.
- 43 2. A statement not to exceed five hundred words.

1 3. A disclosure of any relationships by affinity, by consanguinity
2 or by law to the third degree that exist between the candidate and any
3 current governing board members or other candidates for election to the
4 same governing board.

5 I. Persons related as immediate family who have the same household
6 of residence within four years prior shall not serve simultaneously on the
7 governing board of the same school district if the governing board is
8 composed of five members. For a school district with a student count of
9 at least two hundred fifty that is located in a county with a population
10 of more than five hundred thousand persons, not more than two persons
11 related by affinity, by consanguinity or by law to the third degree shall
12 serve simultaneously on the governing board of the same school district if
13 the governing board is composed of five members. A qualified elector who
14 resides in the school district may bring an action in superior court to
15 enforce this subsection.

16 J. A person related as immediate family who has the same household
17 of residence within four years prior to a member of the governing board of
18 the same school district is ineligible to be a candidate for nomination or
19 election to that governing board if the governing board is composed of
20 five members, except that a person related as immediate family who has the
21 same household of residence within four years prior to a member of a
22 governing board may be a candidate for nomination or election to the
23 governing board of the same school district if the member is serving in
24 the last year of a term of office. For a school district with a student
25 count of at least two hundred fifty that is located in a county with a
26 population of more than five hundred thousand persons, not more than two
27 persons related by affinity, by consanguinity or by law to the third
28 degree shall be eligible to be a candidate for nomination or election to a
29 governing board that is composed of five members. A qualified elector who
30 resides in the school district may bring an action in superior court to
31 enforce this subsection.

32 K. Persons related as immediate family who have the same household
33 of residence within four years prior are ineligible to be simultaneous
34 candidates for nomination or election to the governing board of the same
35 school district if the governing board is composed of five members. For a
36 school district with a student count of at least two hundred fifty that is
37 located in a county with a population of more than five hundred thousand
38 persons, not more than two persons related by affinity, by consanguinity
39 or by law to the third degree shall be simultaneous candidates for
40 nomination or election to a governing board that is composed of five
41 members. A qualified elector who resides in the school district may bring
42 an action in superior court to enforce this subsection.

Senate Amendments to H.B. 2379

1 L. For the purposes of this section:

2 1. "Household of residence" means the place of abode during
3 applicable time periods or the residence address used by an individual for
4 voter registration or property tax purposes.

5 2. "Immediate family" means individuals who are married to each
6 other and any children of those individuals.

7 3. "Small school district" has the same meaning prescribed in
8 section 15-901.

9 Enroll and engross to conform

10 Amend title to conform

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